

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

18. S-CV-0057440 LAKEVIEW LOAN SERV. v. FIRST AM. TITLE INS.

Order to Show Cause re: Preliminary Injunction

On April 6, 2026, the court granted plaintiff's ex parte application for temporary restraining order that granted the following relief

Defendants and their officers, agents, employees, representatives, and all person acting in concert or participating with them, are restrained and enjoined from engaging in, or performing, directly or indirectly, any and all of the following acts: foreclosing or otherwise taking any action to sell the real property, including issuing a Trustee's Deed Upon Sale, commonly known as 5107 Cold Springs Drive, Forest Hill, CA 95631.

The court also set an Order to Show Cause re: Preliminary Injunction for defendants First American Title Insurance Company and Valley First Credit Union to show cause as to why a preliminary injunction against them should not be granted to continue the temporary restraining order for the duration of the action.

Courts must evaluate two interrelated factors to determine whether to issue a preliminary injunction: "(1) the likelihood that the plaintiff will prevail on the merits at trial, and (2) the relative interim harm to the parties from the issuance or nonissuance of the injunction, that is, the interim harm the plaintiff is likely to sustain if the injunction is denied as compared to the harm the defendant is likely to suffer if the preliminary injunction is issued." (Code Civ. Proc., § 526, subd. (a)(1)–(3); *SB Liberty, LLC v. Isla Verde Assn., Inc.* (2013) 217 Cal.App.4th 272, 280.) The plaintiff has the burden of showing they would be harmed without a preliminary injunction. (*Casmalia Resources, Ltd. v. County of Santa Barbara* (2d Dist. 1987) 195 Cal.App.3d 827, 838.) The more likely it is a party will prevail on the merits, the less severe harm need be shown, particularly where the injunction maintains rather than alters the status quo. (*King v. Meese* (1987) 43 Cal.3d 1217, 1227; *Bennett v. Lew* (2d Dist. 1984) 151 Cal.App.3d 1177.)

The first factor weighs in favor of plaintiff as it appears likely to prevail on the merits of their complaint.

The second factor also weighs in favor of plaintiff because defendants' relative harm is minimal considering the only delay is finalizing the sale that has already occurred.

On the other hand, plaintiff will suffer great harm if the preliminary injunction is not issued because it will lose its priority lien on a unique parcel of property.

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Accordingly, the court grants the preliminary injunction.

The issuing of the preliminary injunction is subject to plaintiff posting of \$5,000 bond with the clerk of the court. (Code Civ. Proc., § 529, subd. (a).) Bond shall be posted by **May 21, 2026**.

19. T-CV-0002604 FLAGG, KEOKI v. WAMPLER, DAVE

This tentative ruling is issued by the **Honorable Trisha J. Hirashima**. If oral argument is requested, it will be heard by the Honorable Trisha J. Hirashima on **Tuesday, May 19, 2026, at 8:30 a.m., in Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

Motion to vacate or set aside execution of writ of possession, August 12, 2025
lockout, and post judgment enforcement

On April 20, 2026, defendant filed a motion to vacate or set aside execution of writ of possession, August 12, 2025 lockout, and post judgment enforcement pursuant to Code of Civil Procedure section 473(d). Defendant previously filed a motion to set aside in June 2025, which was denied by written ruling in August 2025. The sheriff executed the writ of possession on August 12, 2025. Plaintiff opposes the motion.

Code of Civil Procedure section 473 (d) states, “The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

The Court of Appeal has outlined the standard for a motion pursuant to Civil Procedure section 473 (d): “[A moving party] could obtain relief under section 473, subdivision (d) only if the [judgment] was void. A judgment is void to the extent it provides relief ‘which a court under no circumstances has any authority to grant.’ (Plaza Hollister Ltd. Partnership v. County of San Benito (1999) 72 Cal.App.4th 1, 20; see Selma Auto Mall II v. Appellate Department (1996) 44 Cal.App.4th 1672, 1683 [‘When a court grants relief which it has no authority to grant, its judgment is to that extent void’].) Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 1004, 1009.

Section 473(d) does not provide relief based on allegations a party did not personally receive, review, or access a ruling before enforcement occurred. Moreover, the court